

Moreover, there is no evidence to suggest Defendants acted in bad faith in connection with its request.

The motion is granted.

6. CU0002626 Bank of America, N.A. v. Prashant Tyagi

One of the parties apparently reserved this date for the filing of a motion; none was filed. This matter is removed from calendar.

7. CU0002738 Roberta McGregor v. Victoria Yeager

No appearances are required. The Court, on its own motion, continues the hearing for this motion until September 4, 2026 at 10:00 a.m. in Department 6.

The tentative ruling for purposes of the September 4, 2026, hearing is as follows: Defendant/Cross-Complainant Victoria S. Yeager's ("Defendant") motion regarding discovery is granted in part. The Court grants Defendant's motion for an order deeming its Requests for Admission (Sets One and Two) directed to Plaintiff Roberta McGregor as admitted, *unless Plaintiff serves substantially compliant responses before the scheduled hearing on September 4, 2026*. The Court grants Defendant's motion to compel initial responses to Special Interrogatories (Set One) without objections. The Court grants Defendant's motion to compel further responses to Form Interrogatories (Sets One-Three), Special Interrogatories (Set Two), and Requests for Production of Documents (Sets One and Two) as described below. The Court denies Defendant's request to propound additional discovery. The Court grants Defendant's request for sanctions in part.

Briefing

Under the Civil Rules of Procedure and Rules of Court, a moving party is allowed to file a motion with a memorandum of points and authorities (15 pages maximum) and supporting documents, an opposing party is allowed to file a single opposition with memorandum (15 pages maximum) and supporting documents, and the moving party is permitted to file a single reply (10 pages maximum), all within circumscribed time periods. *See* Code Civ. Proc. 1005(b), Rules of Court, Rules 3.112-3.113. Plaintiff, without leave of Court, filed *multiple* oppositions. This was improper. In the exercise of its discretion, the Court considered the same. Henceforth, all briefing *shall* comply with the requirements of the Rules of Procedure and Rules of Court, *without exception*. The Court, as necessary, will exercise its authority to strike and disregard future filings that do not comply with these rules.

Form Interrogatories

Legal Standard

Under Code of Civil Procedure section 2030.300(a), a court may order a party to serve a further response to an interrogatory when the court finds that: "(1) An answer to a particular interrogatory is evasive or incomplete[;] (2) An exercise of the option to produce documents

under Section 2030.230 is unwarranted or the required specification of those documents is inadequate[; or] (3) An objection to an interrogatory is without merit or too general.”

Upon receipt of a response, the propounding party may move to compel further response if it deems that an answer to a particular interrogatory is evasive or incomplete, an exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate, or an objection to an interrogatory is without merit or too general. CCP §2030.300(a). Any motion to compel further answers to interrogatories must be filed within 45 days of receipt of response unless the parties agree to extend the time in writing. CCP § 2030.300 (c). When such a motion is filed, the Court must determine whether responses are sufficient under the Code and the burden is on the responding party to justify any objections made and/or its failure to fully answer the interrogatories. *Coy v. Sup. Ct.* (1962) 58 Cal.2d 210, 220-21; *Fairmont Ins. Co. v. Sup. Ct.* (2000) 22 Cal.4th 245, 255.

Analysis

Form Interrogatory (“FI”) No. 17.1 asks, for the responses to requests for admission which are not unqualified admissions, for all facts responses are based upon; names, addresses, telephone numbers of persons with knowledge of those facts; and documents or other tangible things responses are based upon. For all three sets of FIs, Plaintiff failed to provide such information for every RFA that was not an unqualified admission. Therefore, Defendant’s motion to compel a further, verified response to FI No. 17.1, Sets 1-3 is granted.

Plaintiff responded to FI Nos. 4(a) 1.0, 2.2.1, 2.2, 2.3, 2.11, 2.12, 7.0, 7.1, 7.2, 9.1, 9.2, 12.0, 12.2, 12.3, 12.4, 12.5, 12.6, 12.7, 13.0, 13.2, 14.0, 14.1, 14.2, 50.2 with a single paragraph. Under Code of Civil Procedure § 2023.210(c), “each answer...or objection in the response shall bear the same identifying number or letter and be in the same sequence as the corresponding interrogatory.” Therefore, Defendant’s motion to compel further, verified, code-compliant responses to FI Nos. 1.0, 2.2.1, 2.2, 2.3, 2.11, 2.12, 7.0, 7.1, 7.2, 9.1, 9.2, 12.0, 12.2, 12.3, 12.4, 12.5, 12.6, 12.7, 13.0, 13.2, 14.0, 14.1, 14.2, 50.2 is granted.

Special Interrogatories

Analysis

Defendant asserts Plaintiff failed to respond to Special Interrogatories (“SIs”), Set One. While Plaintiff alleges in response she did serve responses, the Court is unable to ascertain from her filings if she has actually done so. Therefore, verified responses without objections are required.

Defendant also argues further responses are warranted for SIs, Set Two Nos. 10, 12, 15, 16, and 17. However, her Separate Statement only addresses SI Nos. 10 and 15. Therefore, the Court will only consider those requests. Plaintiff’s response to SI No. 10 states she will provide a response “upon review of ...documents.” That is insufficient. Plaintiff’s response to SI No. 15 identifies a person present but fails to provide contact information, which is also insufficient. Complete responses are required for all interrogatories, including requests to provide names, address, and telephone numbers of persons. Plaintiff is ordered to provide further, verified, code-compliant responses to SI, Set Two, Nos. 10 and 15.

Requests for Production of Documents

An agreement to comply with a document demand must state whether the responding party will be complying "in whole or in part." Code Civ. Proc., § 2031.220. In addition, the response must indicate whether any documents are being withheld based on an asserted objection. Code Civ. Proc., § 2031.240(b).

On the other hand, Code of Civil Procedure section 2031.230 states:

A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.

On receipt of the response to a document demand, the demanding party may move to compel a further response if any of the following apply: (1) a statement of compliance is incomplete; (2) a representation of inability to comply is inadequate, incomplete or evasive; (3) an objection is without merit or too general. Code Civ. Proc. § 2031.310(a).

Analysis

Defendant seeks further responses to Requests for Production ("RFPs"), Set One, No. 5 and Set Two, Nos. 7-14, 22, 25.

In response to RFP Set One No. 5 and RFP, Set Two, No. 25, Plaintiff responded by including a qualifier "to the extent" that responsive documents are in her possession, they are equally available to Defendant. This response is improper and noncompliant with Code production requirements.

In response to RFP, Set Two, Nos. 7-11, Plaintiff uses improper and non-compliant language, including: "to the extent", "if any" "will produce, or has produced". Additionally, the documents produced have been altered.

In response to RFP Set Two, No. 12, 13, Plaintiff describes a "search of her currently accessible records". Such statement fails to comply with the requirements of Code of Civil Procedure section 2032.230.

In response to RFP Set Two, No. 14, Plaintiff responds by adding a qualifier, "if any" which is improper and non-compliant.

In response to RFP Set Two No. 25, the text at the end of Plaintiff's response cuts off mid-sentence.

Therefore, further, verified, code-compliant responses to RFPs Set One, No. 5 and Set Two, Nos. 7-14, 22, 25 are ordered.

Requests for Admission

Legal Standard

"The party to whom the requests for admission are directed shall sign the response under oath, unless the response contains only objections."¹ Code Civ. Proc. § 2033.240(a). A "response to [an] RFA ...fail[s] to conform to the statutory prescription" if "it was not signed by a party and was not under oath." *Allen-Pacific, Ltd. v. Superior Court* (1997) 57 Cal.App.4th 1546, 1550–1551, *disapproved on other grounds by Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973

"Unsworn [or unverified] responses are tantamount to no responses at all." *Allen Pacific, Ltd. v. Superior Court* (1997) 57 Cal.App.4th 1546, 1550-1551, *citing Appleton v. Superior Court* (1988) 206 Cal. App. 3d 632, 636 and *Zorro Inv. Co. v. Great Pacific Securities Corp.* (1977) 69 Cal.App.3d 907, 914.

A party may move for an order deeming the request for admissions admitted if the party to whom they are directed has failed to serve a timely response. Code Civ. Proc. § 2033.280(b). More specifically:

In the event responses to RFAs are not timely served, the responding party waives any objections thereto (§ 2033.280, subd. (a)), and "[t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction" (id. subd. (b)). Unless the court determines that the responding party "has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220," it must order the RFAs deemed admitted. (Id. subd. (c).) "[A] deemed admitted order establishes, by judicial fiat, that a nonresponding party has responded to the requests by admitting the truth of all matters contained therein." (*Wilcox*, supra, 21 Cal.4th at p. 979, 90 Cal.Rptr.2d 260, 987 P.2d 727.) The court must also impose monetary sanctions upon the party and/or the attorney for the failure to serve a timely response to the RFAs. (§ 2033.280, subd. (c).) But a responding party's service, prior to the hearing on the "deemed admitted" motion, of substantially compliant responses, will defeat a propounding party's attempt under section 2033.280 to have the RFAs deemed admitted. (*Tobin v. Oris* (1992) 3 Cal.App.4th 814, 827, 4 Cal.Rptr.2d 736 (*Tobin*).) As one court put it: "If the party manages to serve its responses before the hearing, the court has no discretion but to deny the motion. But woe betide the party who fails to serve responses before the hearing. In that instance the court has no discretion but to grant the admission motion, usually with fatal consequences for the defaulting party. One might call it 'two strikes and you're out' as applied to civil procedure." (*Demyer v.*

¹ The exception to this requirement, for responses with only objections, is not at issue.

Costa Mesa Mobile Home Estates (1995) 36 Cal.App.4th 393, 395–396, 42 Cal.Rptr.2d 260, fns. omitted (*Demyer*).)

St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 776.

Analysis

At bar, Defendant argues Plaintiff failed to serve verifications with her responses to Requests for Admission (“RFAs”), Sets One and Two. Plaintiff asserts she served verifications. However, the Court is unable to discern from her filings whether such verifications exist.

Accordingly, the Court grants Defendant’s motion for an order deeming the RFAs Sets One and Two directed to Plaintiff as admitted, unless Plaintiff serves substantially compliant responses, including verifications, before the scheduled hearing.

Leave to Propound Additional Discovery

Defendant seeks leave to propound additional discovery, stating the defective responses require such. That request is denied at this time as premature and denied. Plaintiff must have an opportunity to comply with the dictates of this decision. Thereafter, Defendant may seek further relief by way of noticed motion as deemed necessary.

Sanctions

“[A] pro se lawyer cannot recover attorney's fees as a discovery sanction. [S]ome of the costs that pro se litigants incur, if reasonably identifiable and allocable, are recoverable as sanctions—even though those costs are ones that lawyers ordinarily include in their hourly rates or other fee structures.” *Kravitz v. Superior Court* (2001) 91 Cal.App.4th 1015, 1020. The Court finds an award of sanctions to compensate Defendant for reasonable expenses incurred as a result of the discovery motion is warranted under the circumstances present here. Therefore, sanctions in the amount of \$310.00 payable to Defendant are granted. The Court denies the request for imposition of additional sanctions payable to the Clerk.

8. CU21-086089 George Horner, et al. vs. Deborah Carver

Appearances are required by the parties to discuss the recommendations of the referee regarding the status of the home/property in preparation for the sale of the same.